

BEFORE THE PROCUREMENT REVIEW COMMITTEE
BALUCHISTAN PUBLIC PROCUREMENT REGULATORY AUTHORITY,
QUETTA

PRC APPEAL No.33/2026

M/S Malik Haider Khan & Brothers
Through its Authorized Representative Malik Haider Khan,
Holding CNIC No.54303-4118502-1
Office at Band road Pishin.

.... Appellant

Versus

1. Local Government Department, Through its Secretary office at civil Secretariat, Zarghoon road Quetta.
2. Chief officer Municipal corporation Pishin, District Pishin
3. Grievance Redressal Committee, through its Chairman Division Quetta.
4. M/s ONYX Construction Company
5. Assistant Engineer Municipal Corporation Pishin, District Pishin.

.... Respondents

Quorum

- | | |
|----------------------------|--------------------|
| 1. Habib-Ur-Rehman Jamot | Chairman PRC |
| 2. Iftikhar Ahmed Sanjrani | Member PRC |
| 3. Engr. Junaid Shah | Member PRC |
| 4. Iftikhar Ahmed Mir | Private Member PRC |
| 5. Syed Muheebullah | Private Member PRC |

APPEAL UNDER RULE-56-A OF THE BALUCHISTAN PUBLIC PROCUREMENT RULES, 2014 AND ALL OTHER ENABLING PROVISIONS OF LAW AGAINST TSE NO. 252609860933 BY THE MUNICIPAL CORPORATION PISHIN AT DISTRICT PISHIN OF LOCAL GOVERNMENT DEPARTMENT GOVERNMENT OF BALUCHISTAN

For the Appellant: Malik Haider Khan

For the Respondents No. 3 Representative
For the Respondents No. 5 In Person

BRIEF FACTS

The Appellant is a licensed contractor duly registered with the Pakistan Engineering Council (PEC) under Category C-4 (PEC No. 18712), Federal Board of Revenue (FBR), and Baluchistan Revenue Authority (BRA). The Chief Metropolitan Officer, Municipal Corporation Pishin, invited bids through PRQ No. 271/18-09-2025 under the Single-Stage Two-Envelope procedure for various works, including TSE No. 252609860933 titled "Construction of Entrance Gate at Lamaran Cross, Municipal Area Pishin," having an estimated cost of PKR 10,000,000.

The Appellant submitted its bid in accordance with the bidding documents. The technical bids were opened on 03-10-2025. Out of eleven participating bidders, the Procuring Agency declared ten

bidders, including the Appellant, non-responsive. The Appellant was declared non-responsive on the grounds that it allegedly failed to provide work experience of similar nature, failed to submit stamped and signed technical documents, failed to provide agreements containing all terms and conditions, failed to submit genuine documents, and failed to provide a certificate of non-blacklisting.

Subsequently, on 31-12-2025, the Procuring Agency proceeded to open financial bids and declared Respondent No. 4 as the successful bidder.

Being aggrieved, the Appellant filed a complaint before the Complaint Redressal Committee (CRC) on 02-01-2026. However, the CRC rejected the complaint vide order dated 08-01-2026 on the ground of limitation, without addressing the merits or examining the evaluation irregularities alleged by the Appellant.

Aggrieved by the said order, the Appellant filed the present appeal before this Committee under Rule 56-A of the BPPRA Rules, 2014, asserting that it fulfilled all eligibility requirements and that its disqualification was arbitrary, unlawful, and in violation of procurement rules.

PRAYER OF THE APPELLANT

The Appellant prayed that:

- The evaluation report uploaded on 31-12-2025 be declared unlawful and set aside.
- The procurement process be declared mis-procurement.
- The Procuring Agency be restrained from proceeding further under Rule 56(A)(6) of the BPPRA Rules, 2014.
- The Appellant be declared technically responsive.
- Appropriate directions be issued for re-evaluation of bids in the interest of justice, transparency, and fair competition.

APPELLANT'S CONTENTIONS / ARGUMENTS

The Appellant contended that:

1. The Appellant fulfills all eligibility requirements and is duly registered with PEC, FBR, and BRA.
2. The disqualification was based on incorrect and arbitrary grounds, as the Appellant had submitted all required documents.
3. The Procuring Agency failed to clearly specify which documents were required to be stamped and signed, and by whom, rendering the evaluation arbitrary and ambiguous.
4. The Procuring Agency improperly inserted vague and unnecessary requirements without clear legal basis.
5. The Appellant submitted its complaint before the Complaint Redressal Committee on 02-01-2026 within the prescribed time. The receipt of the complaint was acknowledged by the Respondent.
6. The CRC unlawfully rejected the complaint on limitation without providing legal justification or examining the merits.
7. The Procuring Agency issued one Notice Inviting Tender (NIT) covering 36 TSEs and conducted bid submission and opening on the same date manually, which was impractical and compromised transparency.
8. The Procuring Agency violated Rules 4, 33, and 34 of the BPPRA Rules, 2014.
9. The entire procurement process suffered from serious procedural irregularities and lacked transparency, fairness, and lawful evaluation.

RESPONDENTS' REPLY / CONTENTIONS

The Respondents submitted that:

1. The Appellant failed to meet mandatory eligibility criteria prescribed under Rules 34 and 35 of the BPPRA Rules, 2014.
2. The Appellant failed to submit proof of similar work experience.

3. The Appellant failed to submit stamped and signed technical documents.
4. The Appellant failed to submit agreements containing all required terms and conditions.
5. The Appellant failed to submit genuine documents and certificate of non-blacklisting.
6. The Technical Evaluation Committee unanimously declared the Appellant non-responsive based on documentary deficiencies.
7. The Appellant failed to approach the Complaint Redressal Committee within prescribed time, rendering the complaint time-barred.
8. The appeal is incompetent and not maintainable due to procedural defects and limitation.
9. The Procuring Agency conducted the procurement process strictly in accordance with the BPPRA Rules, 2014.

Respondent No. 3 also verbally opposed the appeal and reiterated that the Appellant bypassed the mandatory grievance forum and the appeal was not maintainable.

POINTS FOR DETERMINATION

The following questions arise for determination:

1. Whether the Appellant possessed required work experience of similar nature.
2. Whether the Procuring Agency lawfully required stamping, signing, agreements, and additional documents without clearly specifying evaluation criteria.
3. Whether the Appellant filed its complaint before the Complaint Redressal Committee within prescribed time.
4. Whether issuance of one NIT for 36 TSEs with same submission and opening date was lawful and consistent with procurement transparency principles.
5. Whether the procurement process was conducted in accordance with BPPRA Rules, 2014.

FINDINGS OF THE COMMITTEE (INCLUDING IRREGULARITIES)

Issue No. 1: Work Experience Requirement

The Procuring Agency required bidders to possess experience in similar works. The record indicates that the Appellant did not provide sufficient evidence of similar work experience as required under the eligibility criteria. The Appellant provided only one similar experience while three such experiences were required. Thus the Appellant failed to meet the criteria. The Procuring Agency did not clearly define the nature, extent, and form of acceptable work experience documentation, thereby creating ambiguity in evaluation.

Issue No. 2: Stamping, Signing, and Documentation Requirements

The Appellant was declared non-responsive for failure to stamp and sign documents.

Rule 34 of BPPRA Rules, 2014 mandates that Procuring Agencies must clearly define evaluation criteria and requirements.

The Procuring Agency failed to specify:

- Which documents were required to be stamped and signed.
- By whom such documents were to be stamped and signed.
- The legal consequence of non-stamping.

This omission renders the evaluation criteria ambiguous and unlawful.

Further, BPPRA guidelines issued on 28-08-2025 clearly direct Procuring Agencies not to demand unnecessary or irrelevant documentation. Insertion of vague and unnecessary documentation requirements without clear legal basis, constitutes violation of Rule 34 and BPPRA guidelines.

Issue No. 3: Limitation and Complaint before CRC

The CRC rejected the complaint on limitation on 08-01-2026 without citing any rule or providing legal justification. CRC rejected complaint arbitrarily without legal basis. CRC failed to consider merits of the complaint. This constitutes violation of Rule 56 and principles of natural justice.

Issue No. 4: Issuance of Single NIT Covering 36 TSEs

The Procuring Agency issued one NIT covering 36 TSEs and conducted bid submission and opening on same date manually.

Rule 4 of BPP Rules mandates transparency, fairness, and efficiency. Conducting simultaneous manual bid opening for 36 TSEs compromised transparency and practical evaluation. Such a huge number of TSEs cannot be fairly dealt with if opened on the same day and the Procuring Agency has given rise to many flaws and mistakes. This procedure undermined fair competition and transparency.

Genuineness of brochure of bidding documents:

The Appellant denied the genuineness of the brochure containing the bidding documents provided at bid opening time to the Procuring Agency. The respondent contends otherwise. Appellant's claim of a fake brochure was however sound because he and Procuring Agency had different brochures in possession. The fact is further established by the grounds that the Respondent/Procuring Agency had marked many documents as "available / yes" in their evaluation report which were missing from the bidding documents/brochure of the Appellant available with the Respondent No. 2. This makes the entire procurement process doubtful, unfair, non-transparent and constitutes violation of Rule-4.

Thus Procuring Agency / Respondent is found at fault in this regard for not ascertaining or seeking clarification from the Appellant about the genuineness of the brochure.

Overall Findings

The Committee finds that the Procuring Agency committed serious procedural violations including:

- Failure to define clear evaluation criteria (Violation of Rule 34).
- Arbitrary disqualification of bidders.
- Failure of CRC to properly exercise jurisdiction (Violation of Rule 56).
- Compromised transparency and fairness (Violation of Rule 4).
- Failure to comply with BPPRA Guidelines.

DECISION

In view of the findings and irregularities discussed hereinabove, this Committee holds that the procurement process relating to TSE No. 252609860933 titled "*Construction of Entrance Gate at Lamaran Cross, Municipal Area Pishin*" was not conducted in accordance with the BPPRA Rules, 2014, and suffered from procedural violations and lack of transparency.

Accordingly, the Appeal is hereby allowed, and the impugned procurement process is set aside.

The Procuring Agency is directed to Re-tender the work afresh strictly in accordance with the BPPRA Rules, 2014, ensuring clear evaluation criteria, transparency, and fair competition.

The Procuring Agency shall submit **compliance report within fifteen (15) days** of issuance of this order.

The Appeal is accordingly disposed of in the above terms. The Registrar of this Committee is directed to communicate a copy of this decision to the appellant and all Respondents.

Announced on this 24th day of February, 2026 under the seal and authority of the chairman, Procurement Review Committee, Balochistan Public Procurement Regulatory Authority.

The registrar is directed to communicate this decision to the Appellant and all Respondents for necessary compliance.

Habib Ur Rehman Jamot

Chairman
Government of Balochistan
Public Procurement Review Committee
(B-PPRA)

Iftikhar Ahmed Sanjrani
24/02/2026

Member
Procurement Review Committee
BPPRA

Engr. Junaid Shah

Member
Procurement Review Committee
BPPRA

Iftikhar Ahmed Mir

Member
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Syed Muheebullah, Advocate

Member
Procurement Review Committee
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